

Guaranty Trust Bank

MERCHANT REGISTRATION FORM

In Collaboration with

SECTION 1 – COMPANY INFORMATION

MERCHANT NAME _____

TRADING NAME (if different from Merchant Name) _____

Please complete this section with information about your organization.

ACCOUNT NUMBER:	RC NUMBER:
ADDRESS:	

BUSINESS SEGMENT/INDUSTRY

- | | | | |
|---|--------------------------------------|--|--|
| ☐ Stores/Supermarket | ☐ Restaurants | ☐ Wholesale | ☐ Telecoms |
| ☐ Fuel Stations | ☐ Fast Food | ☐ Hotels/Guest House | ☐ Logistics (Courier) |
| ☐ Church/NGO Agencies) | ☐ Hospital | ☐ Airline (Operators) | ☐ Airline (Travel |
| ☐ Others (Specify) _____ | | | |

Number of POS Terminals required: For customers that require more than one terminal, kindly go to section 3.

SECTION 2 – CONTACT INFORMATION

This section gathers information about the contact person in your organization. All correspondence between Bank, assigned PTSP and your organization will be addressed to the persons below:

NAME OF PRIMARY CONTACT PERSON:	NAME OF SECONDARY CONTACT PERSON RESPONSIBLE FOR TERMINALS
DESIGNATION:	DESIGNATION:
OFFICE TELEPHONE/EXTENSION	OFFICE TELEPHONE/EXTENSION
MOBILE PHONE NO:	MOBILE PHONE NO:
E-MAIL ADDRESS:	E-MAIL ADDRESS:

I, on behalf of _____ hereby certify that the information provided in this form is true and accurate. I agree that Guaranty Trust Bank reserve the right to take appropriate measure including legal action if the information here is discovered to be false. I agree with the terms and conditions in the GTBank Merchant Agreement form.

Signature _____ Designation _____ Date _____

ADDENDUM

SECTION 3 – TERMINAL INFORMATION

This section gathers information about merchants that require more than one POS terminal. All correspondences between Bank, assigned PTSP and your organization will be addressed to the persons below:

Merchant Name:[illegible]

FOR OFFICIAL USE:**SECTION 4 –TO BE COMPLETED BY ACCOUNT OFFICER**

NAME OF ACCOUNT OFFICER _____

BRANCH _____ GROUP/DIVISION _____

PC CODE _____ TEAM NAME _____

Merchant Information to be provided by Account Officer/Account Relationship Manager.

✓ Is KYC (Know Your Customer) in place? ☐ Yes ☐ No✓ Does customer have any record(s) of fraudulent transactions ☐ Yes ☐ No

Unit Head /Group Head Remark & Signature _____

Date _____

SECTION 5 –TO BE COMPLETED BY E-PAYMENT SOLUTION GROUP

NAME OF ASSIGNED PTSP: _____		MERCHANT ID:																			
Terminal Type: _____		<table border="1"><tr><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td></tr></table>																			
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KINDLY SEND COMPLETED FORM TO GTBANK AND AWAIT CONFIRMATION OF MERCHANT SET-UP
WITHIN 48HRS FROM WHEN THE TIME FORM IS RECEIVED AND ACCEPTED AT GTBANK**Unit Head Remark and Signature** _____

MASTERCARDACQUIRER/MERCHANT-TERMSANDCONDITIONS

Weé é é é é é é . of é é é é é é . (hereinafter referred to as "the Merchant" which expression shall where the context so admits include its successors-in-title and assigns) hereby agree to be bound by the following terms and conditions as a MasterCard Merchant appointed by Guaranty Trust Bank Plc (hereinafter referred to as "GTBank")

Definitions

- i. "Acquiring Bank" Banks that have subscribed to the InterSwitch network and where merchant's fund is deposited under the system. Shortname "acquirer"
- ii. Card means a card issued by GT Bank or any Member Bank pursuant to Licence and in accordance with the Standards that provide access to a credit or debit account.
- iii. Cardholder means the authorized user of the Card issued by GT Bank or any Member Bank.
- iv. Card Issuer means a member of the Corporation in its capacity as an issuer of a MasterCard card or MasterCard account.
- v. Chargeback means a disputed claim by a Cardholder to MasterCard through GT Bank.
- vi. Corporation means MasterCard International Incorporated and its subsidiaries and affiliates.
- vii. Corporation Rules means the Standards set forth in the MasterCard Rules Manual.
- viii. Issuing Bank means the issuer of a card
- ix. Member Bank means Banks or financial institutions that have connected to InterSwitch MasterCard and issue cards to customers who maintain accounts with them.
- x. Merchant means a commercial entity or person that, pursuant to a merchant agreement, is authorised to accept Cards and access devices when properly presented.
- xi. Merchant Discount rate means the applicable charge per transaction borne by the Merchant.
- xii. Standards means the Byelaws, rules and policies, and the operating regulations and procedures of the Corporation, including but not limited to any manuals, guides or bulletins, as may be amended from time to time.

1.01 Honouring of Cards

(a) The Merchant will accept all valid MasterCard International cards when properly presented by cardholders for payment for goods and services.

(b) The Merchant shall not establish minimum or maximum amounts for card sales as a condition for accepting any card.

(c) The Merchant shall not engage in a card transaction if the person seeking to charge the purchase to his or her card account does not present the card to allow merchant to examine it and obtain an imprint or otherwise use the physical card to complete the transaction.

(d) The Merchant shall maintain a policy which does not discriminate against Cardholders and must honour all valid Cards when properly presented for payment. Provided that the transaction is not illegal or likely to damage the goodwill of the Corporation or reflect negatively on the Corporation's Marks.

(e) The Merchant shall not discriminate against Cardholders seeking to make purchases with a Mastercard

1.02 Identification

a) The Merchant shall prominently and unequivocally display signs showing its true name and identity visible to all Cardholders within its premises

b) In the event that the Merchant operates a website, that website must contain the following

i. Prominently display the name of the Merchant

ii. Prominently display the name of the Merchant as displayed on the website as both the Merchant and as the name that would appear on the Cardholder statement.

iii. Display the Merchant name information as prominently as any other information depicted on the website, other than images of the products or services being offered for sale.

1.03 Advertising

(a) The Merchant agrees to prominently display the promotional materials provided by GTBank in its place (s) of business. Use of promotional materials and use of any trade name, trademark, service mark or logo type ("marks") associated with card(s) shall be limited to informing the public that card(s) will be accepted at merchants' place(s) of business.

(b) The Merchant may use promotional materials or marks during the tenor of the License granted by the Bank and shall immediately stop the use and return any inventory to GTBank on termination thereof.

(c) The Merchant's use or display of promotional materials or marks does not give the Merchant any ownership or interest in the marks.

1.04 Card Acceptance

When accepting the Card, the Merchant will follow the steps provided by GTBank for accepting cards and will:

- (a) Determine in good faith and to the best of its ability that the Card is valid on its face.
- (b) Obtain authorization from the Card issuer to charge the Cardholder's account.
- (c) Enter a description of the goods or services sold and the price, including applicable taxes in the Transaction Information Document (TID).
- (d) Unless the sales slip is electronically generated
- (e) Obtain Cardholder's signature on the sales slip and compare that signature to the signature on the card.
- (f) Provide the Cardholder with true and completed copy of the TID/receipts.

1.05 Authorization

(a) The Merchant will obtain an authorization from GTBank for all Card sales. If the Merchant cannot for any reason, obtain an electronic authorization through the use of a terminal, the Merchant will request a

voice authorization from the Bank's designated authorization centre and will legibly print the authorization number on the sales slip.

(b) The Merchant hereby acknowledges that an authorization provides only that the Cardholder's account has sufficient credit available to cover the amount of the current sale and that an authorization does not mean the following:

- (i) a guarantee that the transaction will not be subject to dispute
- (ii) a confirmation of the identity of the Cardholder.

1.06 Cash Payments

The Merchant shall not receive any payments from a Cardholder for charges included in any transaction resulting from the use of any card nor receive any payment from the Cardholder to prepare and present a transaction for the purpose of effecting a deposit to the Cardholder's card account.

1.07 Duplicate Transactions

The Merchant shall not deposit duplicate transactions. The Merchant shall be debited for any adjustments for duplicate transactions and shall be liable for any chargeback which may result there from.

1.08 Release of Cardholder Account Information

The Merchant will not under any circumstances disclose any Cardholder's account number or any information relating to the Cardholder's account number or any sales slips or credit vouchers which may have been imprinted with any card to any person other than a GTBank representative or as required by law.

Furthermore, the Merchant agrees to store any material containing the Cardholder's account information in a secure manner with limited access for bonafide purposes and shall destroy such information at the proper time in a fashion which renders the data unreadable.

The Merchant shall not use any Cardholder information for any fraudulent purpose or in violation of the Corporation Rules or for a purpose which the Cardholder did not authorize.

The Merchant agrees that failure to store Cardholder Information or wrongful use/disclosure of any such information will constitute a breach of this Agreement and will therefore be liable to pay damages.

1.09 Compliance with Card Association Rules

The Merchant shall comply with and conduct its card activities in accordance with all Standards.

The Merchant hereby indemnifies the Bank against any loss, liability, cost which the Bank may incur as a result of the Merchant's non compliance with the said Rules and Standards.

1.10 Warranties of Merchant

The Merchant hereby provides the following warranties to GTBank:

(a) All information contained in Merchant's application for processing services or any other documents delivered to GTBank in connection therewith is true and properly reflects Merchants' business, financial condition and principal partners, owners or officers.

(b) The Merchant has the power to execute, deliver and perform this agreement and this agreement is duly authorized and will not violate any provision of law or conflict with any other agreement to which Merchant is subject.

(c) The Merchant has all licenses, if any, required to conduct its business and is qualified to do business in every jurisdiction where it is required to do so.

(d) Each sale slip presented to the Acquiring Bank for collection is genuine and is not the result of any fraudulent transaction or is not being deposited on behalf of any other business other than the business authorized by this Agreement. Furthermore, the Merchant warrants that each sales slip presented shall represent the result of a bonafide

card transaction for the purchase of goods and services by the cardholder in the total amount stated on the sales slip.

(e) The Merchant has performed or will perform all its obligations to the Cardholder in connection with the card transaction evidenced thereby.

(f) The Merchant has the requisite skill and capacity to perform all its duties and obligations as contemplated herein and in accordance with the laws applicable thereto.

(g) The Merchant shall not engage in any acceptance practice that would discriminate against or discourage the use of Mastercard cards in favour of any other Card brand.

(h). The Merchant undertakes to be responsible for the cost of replacing any POS terminal in their possession or custody that is lost, damaged or malfunctioned under any circumstances.

1.11 Indemnity.

The Merchant shall indemnify GTBank from and against all losses, expenses and damages which GTBank or MasterCard International may suffer or incur as a result of its failure to observe any of the Merchant's obligations or arising from any dispute between GTBank and any cardholder in respect of goods and services purchased through the Merchant

The Merchant hereby agrees and undertakes to fully indemnify and keep GTBank harmless from and against all actions, claims, costs (including legal costs on a full indemnity basis), losses, charges, expenses and damages which the merchant may suffer or incur as a result of:

(a) any fraud, dishonesty or misconduct (criminal or otherwise) relating to the Transactions perpetrated by the Merchant, its servant, agent, employee or contractor or the fraud, dishonesty or misconduct (criminal or otherwise) perpetrated by a third party as a result of the negligence or default of the Merchant, its servant, agent, employee or contractor; and

(b) any loss of or damage to any equipment or POS terminal in the Systems arising out of the act or omission whether negligent or otherwise of the Merchant, its servant, agent, employee or contractor or out of any failure of the Merchant, its servant, agent, employee or contractor to operate the equipment in accordance with the procedures prescribed by the network.

9.2 The Merchant shall not hold GTBank liable or responsible for any action, claim, cost, expense, damage and loss, including consequential loss or damage or loss of profit, which the Merchant may suffer or incur as a result of a breakdown in the Systems or POS terminal when the Systems or POS terminal are not available for any reason whatsoever.

1.12 Warning Notice.

GTBank shall forward to the Merchant from time to time the latest Warning Notice in respect of Cards. If the Merchant accepts any card that is on such list, the Merchant will be liable to accept any transaction issued as a result of the use of such card.

1.13 Merchant Monitoring

GTBank reserves the right to take steps as well as request for information that would enable it monitor the Merchant's transactions, deposits and authorization activities in order to ensure that the Merchant is in compliance with the applicable Standards.

Presentments, Payments & Chargebacks

2.01 Chargeback

Any chargeback to the Merchant will be in accordance with the procedures and rules established by MasterCard International as modified from time to time. The reasons for the chargeback of items include (but will not be limited to) the following:

- (a) The transaction amount being not authorized
- (b) The transaction slips being illegible and not signed by the Cardholder
- (c) Error in transaction details
- (d) Transaction amount being altered on sales slip
- (e) Duplicated transaction
- (f) Cardholder alleges non - participation in the sale, non authorization of the use of card and non - receipt of goods and services purchased.
- (g) Declined transaction
- (h) Expired card
- (e) Cancelled or uncompleted pre-authorized transaction

The Bank will however be obliged to give details of reasons for chargebacks.

2.02 Merchant Discount Rate

A flat-fee of 1.25% (or as advised by Interswitch) on the transaction amount with and a maximum of N2, 000 shall be charged by the network as merchant fee payable by the merchant.

However, for International/foreign cards, the applicable charges of 3% shall be applied.

2.03 Payment Procedure

- a. All Transactions shall be made in Nigerian Naira.
- b. The Merchant shall be liable to make payments due to the network arising from this Agreement in accordance with the provisions herein:
 - i. The Merchant shall pay to GTBank the applicable fees, merchant discount on a per transaction basis, at such time as may from time to time be stipulated

by the network in the Schedule of Charges and Fees set out in the Schedule of fees.

- ii. The fees payable by the Merchant under this Agreement are exclusive of any taxes, duties, fees or government levies which may be imposed now or hereafter in respect of the transactions. Such taxes, duties, fees or governmental levies shall be for the Merchant's account.
 - iii. Prompt payment of the fees shall be of the essence of this Agreement. GTBank shall deduct the applicable fees on per-transaction basis.
 - iv. All fees paid by the Merchant under this Agreement shall not be refundable in the event of termination of this Agreement howsoever caused.
- c. Upon the execution of this Agreement, the Merchant shall provide the GTBank with all necessary particulars of the account designated by the Merchant.
- d. If for any reason whatsoever, GTBank ceases to be a Member Bank, the Merchant shall forthwith upon receipt of written notice thereof from the network, redesignate an account for the purpose of the Transactions with any of the other member bank.
- e. The merchant, under this agreement, hereby authorizes the GTBank to debit directly without prior notice all fees due from the Merchant to GTBank and other parties of the network under this Agreement from the aforesaid designated account.
- f. The Merchant undertakes to execute and furnish such additional authority in writing as may be required by GTBank for the purpose of effecting the aforesaid direct debits.
- g. The Merchant accepts that payment can sometimes fail either for reasons known only to the issuing or acquiring Bank or due to a data communication failure between servers. The Merchant can only obtain proof of payment from the transaction message bearing a successful transaction status or the successful transaction report available to the Merchant the day after the Transaction date.
- h. The Merchant agrees that the GTBank will not undertake payment or settlement procedures on the following non-settlement days:
- (i) any day declared by the Association of Banks in Nigeria or the GTBank as being a holiday; and
 - (ii) Sundays and public holidays as gazetted and declared in Nigeria; in which case transactions effected on such days shall be paid and settled on the immediately following day which is not any of the aforesaid non-settlement days.

2.04 Submission of Sales Receipts

The Merchant shall submit copies of sales vouchers/Point of Sale (POS) terminal receipts to the Bank on weekly basis to enable processing/reconciliation with transactions done by the Merchant electronically via the POS terminal. The Bank shall not be obliged to accept any transactions which are not sent within the stipulated one week of the date such transactions were incurred.

2.05 Retrieval Request

Merchant agrees to mail or fax copies of sales receipts to GTBank within 24 hours of receiving retrieval request from GTBank. The Merchant understands that failure to respond to a retrieval request within the time period with a copy of the transaction and proof of delivery to GTBank shall constitute a waiver of all rights of the Merchant to dispute the chargeback.

For the Merchants, the sales slip must be legible, accurate, complete and signed by the Cardholder.

Miscellaneous

3.01 Confidentiality

In the course of this agreement, the Merchant may acquire information relating to GTBank, its pricing methods, systems, processes and hereby agree to respect and preserve its confidentiality and not to disclose any such information to any third party.

The Merchant shall also keep all information acquired from Cardholders confidential and shall not disclose any such information to any third party other than GTBank, the Corporation or as required by law.

3.02 Changes

GTBank shall have the right to amend these terms and condition at any time and from time to time, upon (30) days written notice thereof.

3.03 Terms of this agreement

This agreement and any special conditions shown on the final page hereof, shall supersede any previous agreement between the Merchant and GTBank concerning the same subject and shall become effective when this is signed on by the Merchant and countersigned by GTBank.

This agreement may be terminated by either party at any time by a 30 day written notice sent by registered mail. In the event of termination, your obligation with respect to all transactions accepted by GTBank prior to such termination shall continue in full force and effect.

GTBank may terminate this agreement immediately without prior notice if

- (i) Either party has reason to believe that fraudulent transactions and other activity prohibited by this agreement is occurring at any merchant location
- (ii) Such action is taken to prevent loss to the Bank or Card Issuers
- (iii) Merchant appears on any card Association security reporting,
- (iv) GTBank Merchants' acceptance criteria changes.

3.04 Arbitration

All disputes, controversy or claims arising out of or in connection with this contract shall be finally settled arbitration in accordance with the Arbitration and Conciliation Act, Laws

of Nigeria. The venue of the arbitration shall be in Nigeria and the Language shall be English.

3.05 SEVERABILITY

If any provision herein is deemed by any tribunal or court of competent jurisdiction to be illegal, invalid or unenforceable under any applicable law or otherwise, it shall, to the extent required by such law and subject to the agreement of the network, be severed from this Agreement and rendered ineffective so far as is possible without affecting the legality, validity and enforceability of the remaining provisions of this Agreement.

3.06 INDULGENCE

The liability of the Merchant hereunder shall not be impaired or discharged by reason of any time or grace or other indulgence being granted by or with the consent of GTBank or any forbearance by the GTBank to insist upon its strict rights hereunder. No right under this Agreement shall be deemed to have been waived except in writing signed by the parties hereto and waiver of any particular right in a particular instance shall not constitute or be deemed a waiver of any other right.

3.07 FORCE MAJEURE

No failure or omission by any party to carry out its obligations or observe any of the stipulations or conditions of this Agreement, shall give rise to any claims against the party in question or be deemed a breach of this Agreement, if such failure or omission arises from a cause of force majeure, such as acts of God, war or warlike hostilities, civil commotion, riots, blockades, embargoes, sabotage, strikes, lockouts, shortage of material or labour, delay in deliveries from subcontractors or machine failure caused by force majeure, or any other event outside the control of the party in question.

3.08 SUSPENSION OF RIGHTS

Without prejudice to any of the parties rights at law and under this Agreement, in the event of a breach by the Merchant of any of the terms and conditions of this Agreement, the other party may at its sole discretion give immediate notice in writing to the Merchant to remedy the breach within one (1) month of the said notice and may during the notice period, suspend all rights of the Merchant under this Agreement, save for those rights necessary to enable the Merchant to remedy the breach. If the Merchant shall fail to remedy the breach within the aforesaid notice period, the GTBank shall have the right but not the obligation to extend the notice period (with or without suspension) or forthwith terminate this Agreement in accordance with Clause 3.03.

3.09 Governing Law

The provisions of these terms and conditions shall be governed by Nigerian Law.

(the name of the Merchant should be imputed here) _____

(trading under the name and style of "the merchant's business name should be stated here")

In the presence of: _____

NAME: _____

SIGNATURE: _____

OCCUPATION: _____

ADDRESS: _____

Signed for and on behalf of the within named
GUARANTY TRUST BANK PLC

AUTHORISED SIGNATORY

AUTHORISED SIGNATORY